

STATE OF NEW YORK

5820--A

2025-2026 Regular Sessions

IN SENATE

March 3, 2025

Introduced by Sen. SEPULVEDA -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to the handling fee paid to a dealer or operator of a redemption center for the redemption of empty beverage containers

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 6 of section 27-1007 of the environmental
2 conservation law, as added by section 4 of part SS of chapter 59 of the
3 laws of 2009, is amended to read as follows:

4 6. (a) In addition to the refund value of a beverage container as
5 established by section 27-1005 of this title, a deposit initiator shall
6 pay to any dealer or operator of a redemption center a handling fee of
7 three and one-half cents for each beverage container accepted by the
8 deposit initiator from such dealer or operator of a redemption center.

9 Beginning April first, two thousand twenty-five, the handling fee shall
10 be six cents and shall be adjusted periodically thereafter in accordance
11 with paragraphs (b) and (c) of this subdivision. Payment of the handling

12 fee shall be as compensation for collecting, sorting and packaging of
13 empty beverage containers for transport back to the deposit initiator or
14 its designee. Payment of the handling fee may not be conditioned on the
15 purchase of any goods or services, nor may such payment be made out of
16 the refund value account established pursuant to section 27-1012 of this
17 title. A distributor who does not initiate deposits on a type of beverage
18 container is considered a dealer only for the purpose of receiving a
19 handling fee from a deposit initiator.

20 (b) Beginning December thirty-first, two thousand twenty-five, each
21 year a new federal or New York state minimum wage is to take effect, but
22 not later than the date that the new federal or New York state minimum

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 wage is to take effect, the commissioner shall determine the handling
2 fee to be in effect pursuant to this subdivision. Subject to paragraph
3 (c) of this subdivision, the handling fee determined pursuant to this
4 subdivision shall be:

5 (i) not less than the amount in effect on the date of such determi-
6 nation;

7 (ii) increased from such amount by the percentage increase in the
8 newly effective federal or New York state minimum wage; and

9 (iii) rounded to the nearest multiple of \$0.005.

10 (c) The handling fee shall only be increased by the percentage
11 increase in a newly effective federal minimum wage pursuant to paragraph
12 (b) of this subdivision if the federal minimum wage is set at an amount
13 higher than the New York state minimum wage. If the federal minimum wage
14 is not set at an amount higher than the New York state minimum wage, the
15 handling fee shall be increased only by the percentage of increase in
16 the New York state minimum wage taking effect in such year. If a newly
17 effective New York state minimum wage increases based on a wage rate
18 schedule that varies throughout New York state, then the percentage
19 increase to be used for calculating the handling fee shall be based on
20 the wage rate applicable to city of New York employers with eleven
21 employees or more.

22 § 2. This act shall take effect immediately.